

Naththu Lal v. State of U.P. — recovery citation relegated to Para 6.8 objection

Allahabad High Court · Division Bench · 17 August 2022 · WRIT - C No. - 21159 of 2022 · WRIT - C No. - 21159 of 2022 · Writ disposed; 6.8 objection to be decided in four weeks; stay eight weeks

HEADNOTE

Without expressing any opinion on merits, the Division Bench disposed of a challenge to a recovery citation and demand notice by giving liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. The Executive Engineer is to decide that objection in accordance with law within the next four weeks after hearing. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Naththu Lal approached the Allahabad High Court seeking certiorari to quash an undated recovery citation of Rs. 2,74,410 issued by respondent no. 3 and a demand notice dated 5 February 2020 for Rs. 2,74,075 issued by the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Khaga, Fatehpur, together with a mandamus restraining further coercive steps during the writ. Counsel for the distribution company stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection to demand and recovery citation

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Challenge to a recovery citation and demand notice was disposed by granting liberty to file a Para 6.8 objection for time-bound decision after hearing, with a short stay of coercive action. ¶ 1

alternative-remedy-statutory-appeal-6.8 The Court declined merits review and relegated the consumer to the statutory objection under Para 6.8 of the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND DEMAND NOTICE

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1